SLNo.2

NATIONAL COMPANY LAW TRIBUNAL
HYDERABAD BENCH
COURT HALL NO: II

(PHYSICAL HEARING)

CORAM: JUSTICE TELAPROLU RAJANI – HON'BLE MEMBER (J)
CORAM: SHRI.CHARAN SINGH - HON'BLE MEMBER (T)

ATTENDANCE-CUM-ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, HYDERABAD BENCH, HELD ON 08.06.2023 AT 02:30 PM

TRANSFER PETITION NO.	
COMPANY PETITION/APPLICATION NO.	**CA (CAA) No.42/230/2023**
NAME OF THE COMPANY	**Mahatamil Mining and Thermal Energy Ltd (Transferor Co.1) & Dikon Infratech Pvt Ltd (Transferor Co.2) & Tethys Properties Pvt Ltd (Transferor Co,3) & Belinda Properties Pvt Ltd (Transferor Co.4) & Mirach Power Ltd (Transferor Co.5) & National Energy Trading and Services Ltd (Transferee Co.)**
NAME OF THE PETITIONER(S)	
NAME OF THE RESPONDENT(S)	
UNDER SECTION	**230**

ORDER

This application is allowed, vide separate orders.

Sd/-
MEMBER (T)

Sd/-
MEMBER (J)

Apoorva

C.A. (CAA) No.42/230/HDB/2023
Date of Order: 08/06/2023

IN THE NATIONAL COMPANY LAW TRIBUNAL
HYDERABAD BENCH -II, HYDERABAD

CA (CAA) No.42/230/HDB/2023
(Under Section 230 o to 232 of the Companies Act, 2013 read with the Companies (Compromises, arrangements and amalgamations) Rules, 2016)

IN THE MATTER OF
MAHAAMIL MINING AND THERMAL ENERGY LIMITED
(TRANSFEROR COMPANY - 1)

AND

DIKON INFRATECH PRIVATE LIMITED
(TRANSFEROR COMPANY - 2)

AND

TETHYS PROPERTIES PRIVAE LIMITED
(TRANSFEROR COMPANY - 3)

AND

BELINDA PROPERTIES PRIVATE LIMITED
(TRANSFEROR COMPANY - 4)

AND

MIRACH POWER LIMITED
(TRANSFEROR COMPANY - 5)

WITH

NATIONAL ENERGY TRADING AND SERVICES LIMITED
(TRANSFEREE COMPANY)

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

NEW AMAR AGENCIES PRIVATE LIMITED

Applicant No. 1/
Transferor Company

Dikon Infratech Private Limited — **Applicant No. 2/ Transferor Company**

Tethys Properties Private Limited — **Applicant No. 3/ Transferor Company**

Belinda Properties Private Limited — **Applicant No. 4/ Transferor Company**

Mirach Power Limited — **Applicant No. 5/ Transferor Company**

National Energy Trading and Services Limited. — **Applicant / Transferee Company**

Date of Order: 08/06/2023

Coram:

Hon'ble Justice Mrs. Rajani Telaprolu, Member, Judicial,
Hon'ble Shri Charan Singh, Member, Technical.

Counsel present:

For the Applicants: Mr. Vinay Babu Gade, Advocate

Per: Bench

O R D E R

1. This application is filed under Section 230 of the Companies Act, 2013 (hereinafter referred to as "the Act, 2013"), read with the Companies (Compromises, Arrangements and Amalgamation) Rules, 2016, by M/s Mahatamil Mining and Thermal Energy Limited (hereinafter referred to as the ("Transferor Company - 1"), Dikon Infratech Private Limited ("Transferor Company - 2"), Tethys Properties Private Limited ("Transferor Company - 3"), Belinda Properties Private Limited ("Transferor Company - 4"), Mirach Power Limited ("Transferor Company - 5") and National Energy Trading and Services Limited (hereinafter referred to as the "Transferee Company "), seeking to

convene the meetings of the shareholders and creditors for transferors and transferee companies with regard to the proposed scheme of amalgamation (Hereinafter Referred to as "The Scheme") between the Applicant-Companies.

2. This Joint Petition is filed by the Petitioner Companies under Section 230 read with 232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013 by inter-alia seeking approval for Scheme of Arrangement between the Petitioner Companies and their respective shareholders, creditors so as to be binding on all the members, shareholders, creditors and employees of all the Petitioner Companies and all concerned.

3. Details of the Applicants

A. Applicant No. 1/Transferor Company - 1

i) Mahatamil Mining and Thermal Energy Limited was incorporated as a Public Limited Company under the provisions of Companies Act, 1956 on 24th September, 2010 with vide Corporate Identification Number (CIN) U10200HR2010PLC041280 in the State of Haryana and the PAN of the Companyis AACCL0923A (Hereinafter referred to as the "Transferor 1 Company/MMTEL") having at 3496, Sector 23, Cartarpuri Alias Daulatpur nasirbad, gurgaon, haryana-122017, india.

ii) The main objects of the transferor 1 companyare as follows:

a. To carry on anywhere in India or abroad either individually or jointly, all or any of the businesses to Generate, Transmit, Distribute and Supply Electricity and settingup of Power Plants to generate electricity by means of Coal, Gas, Liquid fuels, Geothermal or through such other means, and to establish Transmission lines and Electric Substation facilities for Governments, Corporates, non-Corporate entities, or for captive consumption and to acquire mine and all mineral resources such as coal and any Fuel required for Power Generation; and to promote, invest in, amalgamate with or acquire such businesses.

b. To carry on anywhere in Indian or abroad either individually or jointly

all or anyof the businesses to own, establish, construct, manufacture, procure, deal in, operate, maintain and manage, power stations, Boiler Houses, Gas Turbines, Diesel Generators, Switch Yards, Transformer Yards, Sub-stations, Transmission Lines, Dams, Reservoirs, etc., required for any power Project and all such Works necessary for generating, transmitting, distributing and supplying of Electricity; in the capacity of Principals, or Contractors or agents and to promote, invest in, amalgamate with or acquire such businesses.

c. To carry on the business of acquiring mining rights and mining of coal and other fuels and transportation thereof to generate electricity, and prospecting, designing, acquiring, developing, planning, promoting, exploring, operating and maintain mining facilities and other ancillary facilities, washeries and to amalgamate with or acquire such businesses.

d. To carry on business in power, coal, gas, diesel, solar panels, solar cells, solar wafers, solar modules/devices, solar module mounting structures, invertors, cables, all types of equipments and machineries including byproducts, spares or accessories and other materials required in generation of renewable and nonrenewable energy, hydrocarbon sources of energy and other fuels as, Trader, distributor, accumulator, supplier, purchaser/buyer, seller, reseller, transmitter, liaisoner, consultant, advisor, agent, sub agent, contractor, sub-contractor, broker, shipper, franchiser, collaborator, stockist, producer, generator, developer,importer, exporter, transporter, dealer within India and/or with other countries andenergy generated either by Hydro, Thermal using oils, gases, coal, coal rejects, fuel oil, naptha, Liquified Natural Gas, raw petroleum stock or any other fuel, solid, liquid or gas whether found in natural state or obtained by processing fromother substances and renewable energy sources, its transmission, distribution andto supply to Central/State Governments/ Corporate Bodies/ Electricity Boards/ Statutory Bodies/ Local Authorities/ Industries, Societies, groups, individuals or consumers and to do all incidental acts, things and deeds as may be necessary forattainment

of the forgoing objects including any other trade or business whatsoever which may be advantageously or conveniently carried on by the company by way of extension of or in connection with or as ancillary to any such business as aforesaid, or is calculated directly or indirectly to develop any branch of the company's business or to increase the value of company's asset, property, or rights."

e. To acquire, hold, sell, buy, purchase or otherwise deal in any shares, units, stocks, debentures, debenture-stock, bonds, mortgages, obligations and other securities by original subscription, tender, sale or otherwise and to subscribe for the same, either conditionally or otherwise.

iii) Relevant Object for giving effect to amalgamation:

Sub- clause 19 of Clause III (B):

"To amalgamate with any other company or companies having objects altogether or in part similar to those of this company."

(Copy of the Certificate of Incorporation and Copy of the Memorandum and Articles of Association of the Transferor 1 Company is annexed hereto and marked as "Annexure – 1").

iv) The Authorized, Issued, Subscribed And Paid-Up Share Capital Of The Transferor 1 Company As On 31.03.2022, Is As Follows:

Share Capital	**Amount in Rs.**
Authorized Capital	
10,00,000 Equity Shares of Rs.10/- (Rupees Ten only) each.	1,00,00,000
9,90,00,000 Preference Shares of Rs.10/- (Rupees Ten Only) each.	99,00,00,000
Total	**1,00,00,00,000**

Issued, Subscribed Capital and Paid Up Capital	
6,75,676 Equity Shares of Rs.10/- (Rupees Ten only) each.	67,56,760
8,99,17,002 Preference Shares of Rs.10/- (Rupees Ten Only) each.	89,91,70,020
Total	**90,59,26,780**

(Copy of the audited financial statements as on 31-03-2022 and Provisional Financial Statements as on 31-12-2022, of the Transferor 1 Company is annexed hereto and marked as "Annexure – 2 & 3 ").

B. <u>Applicant No. 2/Transferor Company - 2</u>

i) DIKON INFRATECH PRIVATE LIMITED (Transferor Company – 2) was incorporated as a Private Limited Company under the provisions of Companies Act, 2013 on 13rd August, 2018 with vide Corporate Identification Number (CIN) U45209TG2018PTC155677 in the State of Telangana and the PAN of the Company is AAGCD8059B (Hereinafter referred to as the "Transferor 2 Company/DIPL"), represented by its Director, Ms. Priya Bandhavi Jaladi (DIN:08662323) having the Registered Office of the Transferor 2 Company is situated at Plot No. 7, Sy. No. 196, Bindu Sadan, 401, Sai Chandra Residency, Manikonda, Puppalaguda, Hyderabad, Telangana- 500089, India.

ii) THE PRESENT MAIN OBJECTS OF THE TRANSFEROR 2 COMPANY ARE AS FOLLOWS:

a. To carry on the business as infrastructure developers, constructors, contractors and trading of materials connected thereof including but not limited construction, development, erecting, setting up of plant and machinery for various industries and to enter into, manage, undertake, carry on and engaged in the business of construction,

Developers, Estate and Site Development, Planners, Builders, Civil Engineering Contractors, Brokers, Agents, Brick Makers, and to build/construct own, operate, maintain, manage, control and administer, Earth Works, farmhouses, Parks, Gardens, Row-houses, Duplex Apartments, Commercial, Residential or Industrial building Complexes, Retail Stores, Shopping Centers, Market Yards and deal in, manage and carry on all types of businesses related to infrastructure development.

b. To conceive, plan, survey, design, study and evaluate all steps, process, techniques and methods for setting up of all types of Infrastructure Projects, facilities or works, and to finance, build, construct, install, erect, undertake, lay down, commission, establish, own, operate, manage, control, and administer, lease, transfer, all Infrastructure Projects, facilities or works including Industrial/ Agricultural Parks, Gardens, Roads, Bridges, Fly-overs, Highways, Roadways, structures and facilities, Rail-roads, Railway Stations, Platforms, Railway Yards, Rail Tracks including gauge conversions thereof, Railway Electrification, Tram-ways, Buildings, Wells, Water-Courses, Dams, Canals, Reservoirs, Urban and Rural Water Supply System, Sewerage and Underground drainage systems, Airstrips, Airports, Seaports, Berths, Jetties, Quays, Docks and Marine structures of all types, Rapid Transport and Telecommunication Systems of all types, Transportation Systems, Irrigation Projects, Water-Ways, Water Supply Schemes including distribution systems, Chemical Plants, Fertilizer Plants, Distillery Plants, LPG and all types of Petroleum Products, Handling and Storage Plants and Terminals, Handling Equipments of various types, Pumping Stations, Light Rail Transport systems for cities, Mass Housing Projects, Industrial Plants of all types, Industrial and Technology parks and civil projects, Environmental based projects and Equipments, Gas pipeline projects and other pipeline projects, Oil Exploration projects, On-shore/off shore projects, Airport facilities, Electronics Hardware Technology Park Complexes, Schools, Colleges, and other educational or vocational

Institutions, Public halls, Museums, Libraries, Garages, Hospitals, Health Centers, Community Centers, Hotels, Holiday Homes and/or Beach Resorts and to render all services in connection thereto as planners, Designers, Consultants, Constructors, Builders, Developers, Engineers, Storage Services, Erectors, Installers, Commissioning Agents, Management Consultants, and to act and to carry on the business as Manufactures, Suppliers, Dealers, Representatives, Stockists, Dealers, Assigners of patents & Trade Marks, Franchisers, Distributors of all types of plants, Machinery, Equipments, Tools, Raw-materials, Intermediaries and other related products and consumables in connection with the aforesaid activities, Industries and Projects.

c. To enter into any contract, Agreements, Memorandum of understanding, Joint Ventures, Arrangements or such other mode of Contracts with Government of India, State Governments, Foreign Governments, Municipal/Local Authorities, Bodies Corporate, Persons or such other Authorities whether in India or elsewhere as the Company may deem fit on the basis of Build-Own- Lease-Transfer (BOLT) Built-Own- Operate-Transfer (BOOT), Built-Own- Operate (BOO) or such other methods for the purposes of carrying out the objects of the Company.

d. To own, acquire, purchase, possess, hold and deal in agriculture land, farms, plots, fields, sites, estates, gardens, groves and all description of vacant or non-vacant lands with or without trees, minerals and other substances whatsoever, with or without building, hereditaments and apartments thereto and to plant, ground, processes and produce cashewnuts, coconuts, mangoes, papayas, pepsines, rubber and other agricultural crops, agricultural products or produce, trees, plants, fruits and flowers of any kind thereon and to carry on the business as growers, agriculturists, agricultural researchers, horticulturists, seri-culturists and florists.

e. To carry on the business of establishing power/energy generating

stations, including buildings, structures, works, machineries, equipment's, cables and to undertake or to carry on the business of managing, owning, controlling, erecting, commissioning, operating, running, leasing or transferring to third person/s, Power plants and Plants based on conventional or non-conventional energy sources, Solar Energy Plants, Wind energy Plants, Mechanical, Electrical, Hydel, Civil Engineering works, mining, oil exploration and similar infrastructure projects.

f. To acquire, hold, sell, buy, purchase or otherwise deal in any shares, units, stocks, debentures, debenture-stock, bonds, mortgages, obligations and other securities by original subscription, tender, sale or otherwise and to subscribe for the same, either conditionally or otherwise.

iii) Relevant Object for giving effect to amalgamation:

Sub- Clause 14 of Clause 3 (a) :

"To amalgamate, enter into any partnership or acquire the whole or any part of the business, property and liabilities of, or acquire any interest in the business or undertaking of, or enter into partnership or any arrangement for sharing profits or losses or for any union of interest, joint ownership, joint venture, reciprocal concession or co-operation with any person, association of persons, firm or company carrying on or engaged in or about to carry on or engage in business or transaction, which the Company is or may be authorized to carry on or engage in any business or transaction capable of being so conducted as to directly or indirectly benefit the Company, or for mutual assistance, with any such person, association, firm or company."

(Copy of the Certificate of Incorporation and Copy of the Memorandum and Articles of Association of the Transferor 2 Company is annexed hereto and marked as "Annexure – 4").

iv) THE AUTHORIZED, ISSUED, SUBSCRIBED AND PAID-UP SHARE CAPITAL OF THE TRANSFEROR 2 COMPANY AS ON 31.03.2022, IS AS FOLLOWS:

Share Capital	**Amount in Rs.**
Authorized Capital	
10,000 Equity Shares of Rs.10/- (Rupees Ten only) each.	1,00,000
Total	**1,00,000**
Issued, Subscribed Capital and Paid Up Capital	
10,000 Equity Shares of Rs.10/- (Rupees Ten only) each.	1,00,000
Total	**1,00,000**

(Copy of the Audited Financial Statements as on 31-03-2022 and Provisional Financial Statements as on 31-12-2022, of the Transferor 2 Company is annexed hereto and marked as "Annexure –5 & 5A").

C. Applicant No. 3/Transferor Company - 3

i) TETHYS PROPERTIES PRIVATE LIMITED was incorporated as a PrivateLimited Company under the provisions of Companies Act, 1956 on 28th January, 2008 with vide Corporate Identification Number (CIN) U45200TG2008PTC057345 in the State of Telangana and the PAN of the Company is AACCT8935E (Hereinafter referred to as the "Transferor 3 Company/TPPL"), represented by its Director, Ms. Priya Bandhavi Jaladi (DIN:08662323) having the Registered Office of the Transferor 3 Company is situated at Plot No.7, BinduSadan, 401, Sai Chandra Residency Opp Green Space Tulasi, Puppalaguda, Manikonda, Hyderabad, Rangareddy-5000089, Telangana, India.

ii) THE MAIN OBJECTS OF THE TRANSFEROR 3 COMPANY ARE AS FOLLOWS:

a. To carry on the business of builders, developers, real estate agents and contractors for construction or demolition work of any kind; and to purchase or otherwise acquire lands, houses, offices, workshops, buildings and premises for the purpose of that business.

b. To erect and construction roads, sewers, houses, buildings or works of every description on any land whether or not owned by the company, and to demolish, rebuild, enlarge, alter and improve existing plots, houses, buildings or works, to convert and appropriate any such land into and for roads and other facilities, and generally to deal with the develop the property of the company.

c. To purchase, sell, develop, take in exchange, or on lease, hire or otherwise acquire, whether for investment or sale, or working the same, and real or personal estate including lands, mines, business, building, factories, mill, houses, cottages, shops, depots, warehouses, machinery, plant, stock in trade, mineral rights, concessions, privileges, licenses, easement or interest in or with respect to any property whatsoever for the purpose of the Company in consideration for a gross sum or rent Page 2 of 3 or partly in one way and partly in the other or for any other consideration and to carry on business as proprietors of flats and buildings and to let on lease or otherwise apartments therein and to provide for the conveniences commonly provided in flats, suites and residential and business quarters.

d. To acquire, hold, sell, buy, purchase or otherwise deal in any shares, units, stocks, debentures, debenture-stock, bonds, mortgages, obligations and other securities by original subscription, tender, sale or otherwise and to subscribe for the same, either conditionally or otherwise.

iii) **Relevant Object for giving effect to amalgamation:**

Sub- clause 19 of Clause III (B) :

"To amalgamate with any other Company or Companies having objectsaltogether or in part similar to those of this Company."

(Copy of the Certificate of Incorporation and Copy of the Memorandum and Articles of Association of the Transferor 3 Company is annexed hereto and marked as "Annexure – 6").

iv) THE AUTHORIZED, ISSUED, SUBSCRIBED AND PAID-UP SHARE CAPITAL OF THE TRANSFEROR COMPANIES AS ON 31.03.2022, IS AS FOLLOWS:

Share Capital	**Amount in Rs.**
Authorized Capital	

Share Capital	**Amount in Rs.**
7,00,00,000 Equity Shares of Rs.10/- (Rupees Ten only) each.	70,00,00,000
Total	**70,00,00,000**
Issued, Subscribed Capital and Paid Up Capital	
2,16,42,522 Equity Shares of Rs.10/- (Rupees Ten only) each.	21,64,25,220
Total	**21,64,25,220**

(Copy of the Audited Financial Statements as on 31-03-2022 and ProvisionalFinancial Statements as on 31-12-2022, of the Transferor 3 Company is annexed hereto and marked as "Annexure –7 & 7A").

D. <u>Applicant No. 4/Transferor Company - 4</u>

i) BELINDA PROPERTIES PRIVATE LIMITED was incorporated as a PrivateLimited Company under the provisions of Companies Act, 1956

on 28th January, 2008 with vide Corporate Identification Number (CIN) U45200TG2008PTC057339 in the State of Telangana and the PAN of the Company is AADCB4057C (Hereinafter referred to as the "Transferor 4 Company/BPPL"), represented by its Director, Ms. Priya Bandhavi Jaladi (DIN:08662323) having at Plot No.7, Bindu Sadan, 401, Sai Chandra Residency Opp. Green Space Tulasi, Puppalaguda, Manikonda, Hyderabad, Rangareddy-5000089, Telangana, India.

ii) THE PRESENT MAIN OBJECTS OF THE TRANSFEROR 4 COMPANY ARE AS FOLLOWS:

a. To carry on the business of builders, developers, real estate agents and contractors for construction or demolition work of any kind; and to purchase or otherwise acquire lands, houses, offices, workshops, buildings and premises for the purpose of that business.

b. To erect and construction roads, sewers, houses, buildings or works of every description on any land whether or not owned by the company, and to demolish, rebuild, enlarge, alter and improve existing plots, houses, buildings or works, to convert and appropriate any such land into and for roads and other facilities, and generally to deal with the develop the property of the company.

c. To purchase, sell, develop, take in exchange, or on lease, hire or otherwise acquire, whether for investment or sale, or working the same, and real or personal estate including lands, mines, business, building, factories, mill, houses, cottages, shops, depots, warehouses, machinery, plant, stock in trade, mineral rights, concessions, privileges, licenses, easement or interest in or with respect to any property whatsoever for the purpose of the Company in consideration for a gross sum or rent Page 2 of 3 or partly in one way and partly in the other or for any other consideration and to carry on business as proprietors of flats and buildings and to let on lease or otherwise apartments therein and to provide for the conveniences commonly

provided in flats, suites and residentialand business quarters.

d. To acquire, hold, sell, buy, purchase or otherwise deal in any shares, units, stocks, debentures, debenture-stock, bonds, mortgages, obligations and other securities by original subscription, tender, sale or otherwise and to subscribe for the same, either conditionally or otherwise.

iii) Relevant Object for giving effect to amalgamation:

Sub- clause 19 of Clause III (B) :

"To amalgamate with any Company or Companies having objects altogether or in part similar to those of this Company."

(Copy of the Certificate of Incorporation and Copy of the Memorandum and Articles of Association of the Transferor 4 Company is annexed hereto and marked as "Annexure – 8").

iv) THE AUTHORIZED, ISSUED, SUBSCRIBED AND PAID-UP SHARE CAPITAL OF THE TRANSFEROR COMPANIES AS ON 31.03.2022, IS AS FOLLOWS:

Share Capital	**Amount in Rs.**
Authorized Capital	
7,00,00,000 Equity Shares of Rs.10/-(Rupees Ten only) each.	70,00,00,000
Total	**70,00,00,000**
Issued, Subscribed Capital and Paid Up Capital	
3,01,79,435 Equity Shares of Rs.10/- (Rupees Ten only) each.	30,17,94,035
Total	**30,17,94,035**

(Copy of the Audited Financial Statements as on 31-03-2022 and Provisional Financial Statements as on 31-12-2022, of the

Transferor 4 Company is annexed hereto and marked as "Annexure – 9 & 9 A ").

E. Applicant No. 5/Transferor Company - 5

i) MIRACH POWER LIMITED was incorporated as a Public Limited Companyunder the provisions of Companies Act, 1956 on 11th May, 2004 with vide Corporate Identification Number (CIN) U40109TG2004PLC043236 in the State of Telangana and the PAN of the Company is AACCD0862C (Hereinafter referred to as the "Transferor 5 Company/MPL"), represented by its Director, Ms. Priya Bandhavi Jaladi (DIN:08662323) having he Registered Office of the Transferor 5 Company is situated at Plot No.7, Bindu Sadan, 401, Sai Chandra Residency Opp Green Space Tulasi, Puppalaguda, Manikonda, Hyderabad, Rangareddy-500089, Telangana, India.

ii) THE PRESENT MAIN OBJECTS OF THE TRANSFEROR 5 COMPANY ARE AS FOLLOWS:

a. To generate, harness, develop, accumulate , transmit, distribute and supply Electricity by setting up power plants for the purpose of light heat , motive power and for all other purposes for which Electricity Energy can be employed, to carry on generate and supply power either by Hydro, TLtermal, Oil, Gas, Air, Sea energy, Diesel Oil, or through renewable energy sources such as solar, photovoltaic, windmill and /or any other means, to transmission lines and facilities for power either directly or through transmission lines and facilities for central/state Governments or private companies or Electricity Boards to industries and to central /state government other consumers of electricity including for captive consumption for any industrial projects promoted by this company or promoter companies, generally to develop generate, accumulate power at any other place or places and to transmit , distribute, sell and supply such power.

b. To construct, establish, maintain, manage power station, Boiler

Houses, Steam Turbines, Gas Turbine, Switch Yards, Transformer Yards, Sub- Stations, Transmission Lines, Accumulators, Workshop, Dam, Reservoirs etc, required for hydro project, and all such work necessary for generating, accumulating, Distributing and supply of electricity. To Construct, Laydown, Establish, Fix, Erect Generating machinery and all other types of plant and Machinery, Electrical Equipment, Transmission lines, Accumulators, Fitting and Apparatus in the capacity of principal, contractors, or otherwise, to manufacture, maintain, service, or otherwise deal in the machinery, equipment, material, convenience, provision, and things used or capable' of being used in the generation of power.

c. To carry on the business of consultants and contractors in setting up all types of plants for production of Electrical Energy, and also to undertake Research and Development programmes in the field of electricity, electronic and other field, Refurnishing, Renovating, Reforming, etc., of old power projects.

d. To acquire commissions or licenses granted by or to enter into contracts with Government of India, Municipal, or local authorities, company, or person in India for the construction, operation, and maintenance of any electric power for lighting, Heating, Signalling, Telephonic Traction, Motive or any other purposes or for trade, industrial manufacturing or any other purposes as may be mutually agreed together with required movable and immovable facilities such as land, building, Railway siding, site or sites of central/ state governments/ Electricity Boards as per then terms or condition conductive to the interest of the company and to pay mutually decided and with the objects aforesaid to enter into and to the execute such agreements, guarantees, Deeds and documents as may be proper, necessary or expedient.

e. To carry on the business of electrical, electronics, tele communication, mechanical, civil, and electrical engineers and construction, suppliers of electricity for the purpose of light, heat, motive power or otherwise,

and manufacture of and dealer in Apparatus and things required for or capable of being used in connection with the generation, distribution, supply, accumulation, and employment, or electricity (including the terms electricity all power that may be directly or indirectly derived there from or may incidentally hereafter discovered in dealing with electricity, solar energy , tidal energy , or any other natural resources). Galvanism, magnetism or otherwise.

f. To acquire, hold, sell, buy, purchase or otherwise deal in any shares, units, stocks, debentures, debenture-stock, bonds, mortgages, obligations and other securities by original subscription, tender, sale or otherwise and to subscribe for the same, either conditionally or otherwise.

iii) Relevant Object for giving effect to amalgamation:

Sub- clause 33 of Clause III (B) :

"To amalgamate, enter into any partnership or make any arrangment for sharing profits, union of interest, co-operation, joint venture on reciprocal concessions or for limiting competition with any individual, person or company."

(Copy of the Certificate of Incorporation and Copy of the Memorandum and Articles of Association of the Transferor 5 Company is annexed hereto and marked as "Annexure –10 ").

iv) THE AUTHORIZED, ISSUED, SUBSCRIBED AND PAID-UP SHARE CAPITAL OF THE TRANSFEROR COMPANIES AS ON 31.03.2022, IS AS FOLLOWS:

Share Capital	**Amount in Rs.**
Authorized Capital	
50,00,000 Equity Shares of Rs.10/-(Rupees Ten only) each.	5,00,00,000
Total	**5,00,00,000**

Issued, Subscribed Capital and Paid Up Capital	
2,11,000 Equity Shares of Rs.10/- (Rupees Ten only) each.	21,10,000

Share Capital	**Amount in Rs.**
3,00,000 Preference Shares of Rs.10/- (Rupees Ten only) each	30,00,000
Total	**51,10,000**

(Copy of the Audited Financial Statements as on 31-03-2022 and Provisional Financial Statements as on 31-12-2022, of the Transferor 5 Company is annexed hereto and marked as "Annexure – 1 1 & 1 1 A ").

F. <u>Applicant No. 6/Transferee Company</u>

i) NATIONAL ENERGY TRADING AND SERVICES LIMITED was incorporated as a Public Limited Company under the provisions of Companies Act, 1956 on 06th March, 2004 with vide Corporate Identification Number (CIN)U10100TG2000PLC033791 in the State of Telangana and the PAN of the Company is AAACL7123L (Hereinafter referred to as the "Transferee Company/NETSL"), represented by its Director,Ms. Priya Bandhavi Jaladi (DIN:08662323) having the Registered Office of the Transferee Company is situated at D.No.1-98/6/J/25/1, Plot No.25, Jubilee Enclave, 1st Floor, Madhapur Village, Serilingampally Mandal, Ranga Reddy District, Hyderabad-500081, Telangana, India.

ii) THE MAIN OBJECTS OF THE TRANSFEREE COMPANY ARE AS FOLLOWS:

a. To carry on the business in power, coal, gas, diesel, solar panels, solar cells, solar wafers, solar modules/devices, solar module mounting structures, invertors, cables, all types of equipment's

and machines including by products, spares or accessories and other materials required in generation of renewable and non-renewable energy, hydrocarbon sources of energy and other fuels as, Trader, distributor, accumulator, supplier, purchaser/buyer, seller, reseller, transmitter, liaisoner, consultant, advisor, agent, sub agent, contractor, sub-contractor, broker, shipper, franchiser, collaborator, stockist, producer, generator, developer, importer, exporter, transporter, dealer within India and/or with other countries and energy generated either by Hydro, Thermal using oils, gases, coal, coal rejects, fuel oil, naptha, Liquified Natural Gas, raw petroleum stock or any other fuel, solid, liquid or gas whether found in natural state or obtained by processing from 6ther substances and renewable energy sources, its transmission, distribution and to supply to Central/State Governments/ Corporate Bodies/ Electricity Boards/ Statutory Bodies/ Local Authorities/ Industries, Societies, groups, individuals or consumers and to do all incidental acts, things and deeds as may be necessary for attainment of the forgoing objects.

b. To construct, establish, erect, operate, maintain, manage Power Stations comprising of Boiler Houses, Steam Turbines, Gas Turbines, Diesel Generators, Switch Yards, Transformer Yards, Sub-stations, He lines, Transmission Lines. Accumulators, Workshops; Dams. Reservoirs, etc., required for Hydro Projects, and all such other works necessary for Distribution of Power, Energy and Hydrocarbon sources of energy, including taking on lease mining, purchase of mines, mining rights, mining grounds and any grants, concessions and easements or other property in India or elsewhere in the World, necessary or convenient for the advantageous possession of lands or any interest therein and to quarry mine dress, reduce extract, calcinate, smelt, refine, manufacture, process or otherwise generally dealing in minerals, other natural oils, petroleum, all other forms of solid, liquid and

gaseous hydrocarbons and other minerals and their products, by-products and to provide the same to Central/State governments/ Corporate Bodies/ Elect city Boards/ Statutory Bodies/ Local Authorities/ Industries, Societies, groups or individuals and any other consumers of Power, Energy and Fuels, Hydrocarbon sources of energy and to do all incidental acts, things and deeds as may be necessary for attainment of the forgoing objects.

c. To carry on the business for the purpose of sale, purchase, trade, consumption, import, export, transport, deal, develop, exchange or on lease, hire or otherwise acquire lands, mines, factory, buildings, mills, houses, cottages, shops, depots, warehouses, machinery, plant, stock, stock-in-trade, mining rights/ licenses in India or elsewhere in the World and to takeover, merge, amalgamate, acquire, hold, or to provide technical, financial assistance/support for all types of power or energy based companies including companies operating in Engineering, procurement & construction, Operation & Maintenance, import of fuel Bs, coal mine/ coalfield, mining of coal and to facilitate transportation by sea or land, loading & unloading of coal etc.. for the purpose of entering into Energy purchase agreements and for trading of all types of Energy, along with Generation, Transmission and Distribution of such Energy and to do all incidental acts, things and deeds as may be necessary for attainment of the forgoing objects.

d. To carry on the refurnishing, renovating, reconditioning of old power plants and to acquire licences for construction, operation, maintenance, purchase, distribution and sale of Electric Power for all purposes and to execute deeds, documents as may be expedient.

e. To establish and carry on in India or elsewhere the business of prospecting, exploring, operating and working on mines, quarries and to win, set, crush, smelt, manufacture, process, excavate, dig,

break, acquire, develop, exercise, turn to account, survey, produce, prepare, remove, undertake, barter, convert, finish, load, unload, handle, transport, buy sell, import, export, supply, and to act as agent, broker, stockiest, distributor, consultant, contractor, manager, operator or otherwise to deal in all sorts of present and future silicon, Quartz, Bentonite, laterite, all varieties of Feldspar, aN varieties of ferro alloys, brass, ores, minerals, deposits, goods, oils, substances & materials, including sands, stones, and soil, chalk, clay, china c/ay, betonies, broils, calcite and coal, lignite, rock phosphate, brimstone, brine, bauxite, limestone. precious and other stones, gold, silver, diamonds, iron, aluminium, titanium, vanadium, mica, apalite, chrome, copper, gypsum, rutile, sulphate, tin, zinc, zircon, tungsten, and other allied materials, by products, mixtures, blends, residues and substances, and to do an incidental acts and things necessary for the attainment of the objects under these presents and to search, survey, discover and find out and the acquire by concession, grant, purchase, barter, lease, license, degrees & tenders the allotment or otherwise of land or water area from government, semi-government, local authorities, private bodies, corporations and other persons, such rights, powers, and privileges whatsoever for obtaining mines, open cast mines, bucket mines, quarries, deposits, etc. for the accomplishment of the above objects and manufacture, buy & sell, import & export, deal, trade in machines, appliances and accessories required for the production of minerals and other products to buy & seIl, hold stocks of minerals, enter into agreement of understanding to function as stockiest, commission agents or brokers for the above mentioned items and to act as technical consultants in connection with the above objects and to render technical knowhow services in connection with the above services and to design, fabricate and manufacture plant and machinery, equipment, accessories, apparatus, machine

parts and machinery required in minerals and Allied Industries.

f. To carry on the business of designers, developers, manufacturers, producers, fabricators, assemblers, merchants, dealers, exporters, importers sellers, resellers, hirers, installers and repairers of all types of irrigation equipment, irrigation systems, micro-irrigation systems, sprinklers, popups, rain spray, valves and control equipments, hydro rain, Biwa II and fittings, controllers, Drip emitters of all types and drip irrigation systems, fertilizer, injection pumps sand fitters, screen filters, fittings, L.D. Polyethylene tubing, Pressure gauges and adapters, sand separators, spray nozzles, sprinklers, tensiometers, hydraulic valves, solenoid valves, solenoid anti-contamination valves an solenoid pressure reducing valves, fertilizer applicators, agricultural implements, tools, pumps, drilling equipments, casting tubes, manures, plant protection equipments, cold storage and refrigeration systems and to develop, design, produce, process and fabricate, accessories, components, implements, spare parts required for irrigation services and sink wells, construct dams, bandhs, culverts, cisterns, resewoir and filter beds and to provide main and other pipes and appliances and to carry on the business of manufacturers, traders, dealers, import and export agency, stockist for various raw materials, processing systems, machines that may be required in accomplishing this objective.

g. To carry on the business as promoters, developers, engineers, surveyors, contractors, builders, real estate brokers and managers of and to purchase, sell, resell, give or take on lease or rent, lay out, develop, construct, build, erect, demolish, or-erect, alter, repair, remodel of commercial, industrial premises and residential houses of every type, housing societies, flat schemes, apartments, commercial buildings, offices, factories, warehouses, shops, god owns, farm houses, markets, schools, hotels, motels, theatres,

hospitals, recreation centres, and to undertake all types of contracts entailing Build Operate Transfer (BOT) or Bund Operate Lease Transfer (BOLT) -of roadways, national highways, bridges, flyovers, airways, foot-over ways, rope-ways, Cable Cars, sewers, canals, docks, wells, springs, dams, racecourses, water courses and reservoirs, tunnels, Electrical works, earth works, drains, sewage, light houses, towers, transmission towers, pipelines, underground cables, railway tracks, railway sidings, runway ship yards, stockyards, cu:veRs, channels whether on turnkey basis or on labour contracts, reclamation, water parks, irrigation schemes, entertainment complex, industrial complexes, harbours, power plants, reservoirs, embankments and/or of construction, structural work of any kind whatsoever in India or abroad and for that purpose to acquire, purchase assets, liabilities , shares of any company, firm, corporation engaged in similar business and to develop land, buildings and other properties and to generate electrical power by conventional, non- conventional methods including Solar, wind, Hydel, natural gas, geothermal, geo-hydel, tidal waves, biogas, biological and carry on all or any of the business of producers, suppliers, distributors, transformers, converters, transmitters, processors, developers, storers, procurers, carriers, and dealers in electricity, all forms of energy, including captive consumption, and any such products and by-products derived from such business including without limitation, steam, fuels, ash, conversion of ash to bricks and any products derived from or connected with any other form of energy and to carry on the business of manufacturers, trader£, dealers, import and export agency, stockist for various raw materials, processing.

h. To purchase, acquire, take on lease or in exchange or in any other lawful manner, any area, land, buildings, structures and to turn the same into account, develop the same and dispose of or

maintain the same and to build townships, markets or other buildings, residential and commercial or conveniences thereon and to equip the same or part thereof with an or any amenities or conveniences, drainage facility, electric, telephonic, television installations and to deal with the same in any manner whatsoever and by advancing money to and entering into contracts and arrangements of all kinds with builders, tenants and others and to carry on the business of manufacturers, traders, dealers, import and export

i. To early on the business of manufacturing ,processing , producing ,spinning , weaving , blending ,sorting , buying ,selling , importing exporting ,marketing ,or supplying and to act as broker , trader, agent, C&F agent , distributor, representative , stockiest ,job worker , liasioner or other wise to deal in all in all kinds of cotton ,jute ,raw jute flex hemp , silk raw, silk artificial silk , wool , rayon , nylon, ethylene polyester, Rexene, synthetic yan , synthetic fibre, stapiefiber and any other natural synthetic or mam-made fibre and blends or fibrous substances and materials ,textiles , fabrics and yams of all kind whether made form cotton wool silk raw silk ,jute , hemp rayon artificial silk , nylon terylene and any other natural synthetic or man-made fibre and blend and blend or fibrous substances and materials , and to manufacture , buy sell and deal in linen and other to carry on the business of business of the business of wool combers , worsted spinners worsted stuff manufactures drapers printer ,overs ,bleacher ,seltzers, weavers dress makers , Durenes , finisher of all kind of embroideries maker of vitrio , bleaching and dying materials , flex ,hemp ,jule ,wool and silk merchants ,and manufactures , processors , importers ,exporters, buyers, sellers of and dealers in all kind of fabrics textiles and hosiery good ,readymade garments , ropes textiles made out of other substance capable of spinning and weaving cloth with any other mixture of natural synthetic fibre including

silk and to print to print the same with all or any processors.

j. To acquire, hold, sell, buy, purchase or otherwise deal in and shares, units, stocks, debentures, debentures stock , bonds, mortgages , obligations and other securities by original subscription, tenders, sale or otherwise and to subscribe for the same, either conditionally or otherwise.

iii) Relevant Object for giving effect to amalgamation:

Sub- clause 33 of Clause III (B) :

"To amalgamate, enter into partnership or make any arrangement for sharing profits, union of interest, co-operation, joint venture on reciprocal concessions or for limiting competition with any individual, person or company."

(Copy of the Certificate of Incorporation and Copy of the Memorandum and Articles of Association of the Transferee Company is annexed hereto and marked as "Annexure – 12").

iv) THE AUTHORIZED, ISSUED, SUBSCRIBED AND PAID-UP SHARE CAPITAL OF THE TRANSFEREE COMPANY AS ON 31.03.2022, IS AS FOLLOWS:

Share Capital	**Amount in Rs.**
Authorized Capital	
10,00,00,000 Equity Shares of Rs.10/-(Rupees Ten only) each.	1,00,00,00,000
Total	**1,00,00,00,000**
Issued, Subscribed Capital and Paid Up Capital	

Share Capital	**Amount in Rs.**

3,65,29,400 Equity Shares of Rs.10/- (Rupees Ten only) each.	36,52,94,000
Total	**36,52,94,000**

(Copy of the Audited Financial Statements as on 31-03-2022 and Provisional Financial Statements as on 31-12-2022, of the Transferee Company is annexed hereto and marked as "Annexure – 1 3 & 1 3 A ").

4. JURISDICTION OF THE BENCH

The registered office of the Transferor 1 Company is situated in the state of Telangana and Haryana, hence the subject-matter of this Application is within thejurisdiction of this Hon'ble National Company Law Tribunal, Hyderabad Bench & Chandigarh Bench.

5. LIMITATION

The present Application is being filed under sections 230 - 232 of the CompaniesAct, 2013, pursuant to the Board Resolution passed by the Board of Directors of the Applicant Companies at their respective meetings held on 15th March, 2023 and hence the present application is within the Limitation.

6. Rationale For the Proposed Scheme

i) The Board of Directors of the Applicant Companies at their respective meetings held on 15th March, 2023 have resolved to amalgamate the Transferor Companieswith the Transferee Company pursuant to a Scheme of Amalgamation between **Mahatamil Mining and Thermal Energy Limited, Dikon Infratech Private Limited, Tethys Properties Private Limited, Belinda Properties Private Limited, Mirach Power Limited with National Energy Trading and ServicesLimited** and their respective Shareholders and Creditors. The Board of Directors(defined herein) of the Transferor Companies and the Transferee Company believe the following

benefits pursuant to the amalgamation of the Transferor Companies into the Transferee Company.

a) The Transferor Companies are group companies hence merger will help to consolidate the entities and there is no movement of assets outside the group.

b) To achieve cost savings from more focused operational efforts, rationalisation, standardisation and simplification and standardisation of business processes, productivity improvements and rationalization of administrative expenses and optimisation of the group structure and efficient administration.

c) The consolidation of activities of the Transferor Companies and the Transferee Company by way of merger will lead to operational Synergies, greater productivity and economical operations for future growth of the Transferee Company.

d) The merger will provide for pooling of the managerial, technical and financial resources of the Transferor Companies and Transferee Company which will help in increasing the competitiveness of the Transferee Company.

e) The merger will result in economies of scale, reduction in overheads including administrative, managerial and other expenditure, operational rationalisation, organisational efficiency and optimal utilisation of resources.

f) The merger will result in a significant reduction in the multiplicity of legal and regulatory compliances required at present to be carried out by both the Transferor Companies and Transferee Company.

g) The Banks, creditors and financial institutions, if any, are not adversely affected by the proposed merger as their security and asset cover will be maintained.

7. Consideration

i) TO EQUITY SHAREHOLDERS OF TRANSFEROR COMPANIES

Upon sanction of this Scheme by the Tribunal and in consideration of transfer and vesting of the Amalgamating Undertaking of the Transferor Companies to the Transferee Company in terms of provisions of the Scheme, the Transferee Company shall, without any further application or deed, issue and allot equity share(s) to the members of the Transferor Companies whose names appear in the Register of members as on Record Date, in the following ratio ("Share Exchange Ratio"):

3.16 Equity shares of Transferee Company of Rs.10/- each fully paid- up for every 100 (Hundred) equity shares of Transferor 1 Company ofRs.10/- each fully paid-up based;

928.03 Equity shares of Transferee Company of Rs.10/- each fully paid-up for every 100 (Hundred) Equity shares of Transferor 2 Company ofRs.10/- each fully paid-up based;

3.16 Equity shares of Transferee Company of Rs.10/- each fully paid- up for every 100 (Hundred) Equity shares of Transferor 3 Company ofRs.10/- each fully paid-up based;

3.16 Equity shares of Transferee Company of Rs.10/- each fully paid- up for every 100 (Hundred) Equity shares of Transferor 4 Company ofRs.10/- each fully paid-up based;

3.16 Equity shares of Transferee Company of Rs.10/- each fully paid-up for every 100 (Hundred) Equity shares of Transferor 5 Company of Rs.10/- each fully paid-up based;

(A Signed copy of the Valuation Report from Registered Valuer for the Share Exchange Ratio is annexed hereto and marked as "Annexure- 1 5 ").

The equity shares to be issued in terms of this clause shall be subject to the provisions of the Memorandum and Articles of Association of the Transferee Company. The new equity shares shall rank *pari-passu* in all respects, including dividend, with the existing equity shares of the Transferee Company.

The members of the Transferee Company, on approval of the Scheme, shallbe deemed to have given their approval under section 62 of the Companies Act, 2013 and other applicable provisions of the Act, for issue of fresh equity shares to the members of the Transferor Companies and the Transferee Company will not be required to pass any further resolution for issue and allotment of shares to the Shareholders of the Transferor Companies.

In case any shareholder's holding in the Transferor Companies is such that the shareholder becomes entitled to a fraction of an equity share of the Transferee Company, the Transferee Company shall not issue fractional shares to such shareholder but shall round off the fractional share, if any, thatmay arise due to the implementation of clause 5.1 of the Scheme, to the nearest higher/ lower Integer.

The shares held by the Transferor Company in the Transferee Company shallbe cancelled without issue and allotment of any new shares in lieu thereof toany person whatsoever. Such cancellation of cross holding is only consequential to the amalgamation and will rationalize and adjust the relationship between capital and assets suitably.

8. Authorized Signatories and Board Resolutions

The Board of Directors of the Applicant Companies at their respective meetings held on 15th March, 2023 approved the Scheme of Amalgamation between Mahatamil Mining and Thermal Energy Limited, Dikon Infratech Private Limited, Tethys Properties Private Limited, Belinda Properties Private Limited, Mirach Power Limited with National Energy Trading And Services Limited and their respective Shareholders and Creditors.

(A certified copy of the Board Resolutions passed by the Board of Directors of the Applicant Companies is annexed hereto and marked as ("Annexure – 22, 23, 24, 25, 26 & 27").

9. SCOPE OF THE SCHEME:

i) This Scheme is presented under Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 and provides for the amalgamation of Transferor Companies into Transferee Company and consequent issue of equity shares by the Transferee Company to the Shareholders of the Transferor Companies. The Scheme also provides for various other matters consequential to, or otherwise integrally connected with the above. The scope of the scheme is as under:

(1) Amalgamation of the Transferor Companies into the Transferee Company.

(2) Clubbing of authorised capital of the Transferor Companies with the Transferee Company.

(3) Dissolution of the Transferor Companies without going through the route of Winding up.

(4) Transfer of the Transferor Companies will be on a going concern basis.

(5) This Scheme of Amalgamation has been drawn up to comply with the conditions as specified under section 2(lB) of Income Tax Act, 1961, such that:

(a) All the properties of Transferor Companies, immediately before the amalgamation, become the properties of Transferee Company by virtue of amalgamation.

(b) All the liabilities of Transferor Companies, immediately before the amalgamation, become the liabilities of Transferee Company by virtue of amalgamation.

(c) All the shareholders of the Transferor Companies, immediately before the amalgamation, become the shareholders of the Transferee Company by virtue of amalgamation.

(A Signed copy of the Scheme of Amalgamation between Transferor Companies with Transferee Company and their respective Shareholders and Creditors is annexed hereto and marked as "Annexure- 1 4 ").

ii) Clause 1.5 of the Scheme: "Appointed Date" means the 01st day of April, 2022 or such other date as may be fixed or approved by the National Company Law Tribunal at Hyderabad.

iii) COMPLIANCE OF ACCOUNTING STANDARD

i) The accounting treatment proposed at clause 6 of the Scheme of Amalgamation between Mahatamil Mining and Thermal Energy Limited, Dikon Infratech Private Limited, Tethys Properties Private Limited, Belinda Properties Private Limited, Mirach Power Limited with National Energy Trading And Services Limited and their respective Shareholders and Creditors is in conformity with the accounting standards as prescribed under the provisions of Section 133 of the Companies Act, 2013.

(Certificates issued by the Chartered Accountant confirming the Accounting Treatment proposed in the Scheme, is annexed hereto and marked as ("Annexure-16, 17, 18, 19, 20 & 21").

ii) DECLARATION BY THE APPLICANT COMPANIES

a. No petition under Section 241 or 242 of the Companies Act, 2013, has been filed against the Applicant Companies and there has been no material changein the affairs of the Applicant Companies, except for what was done in the normal course of business.

b. There are no proceedings pending under Section 210 to 227 of Companies Act, 2013, against the Applicant Companies.

c. It is submitted that the Transferor Companies has the following Equityshareholders and Preferences Shares as on 31st day of March, 2022:

Transferor 1 Company

Sl. No.	Name of shareholder	Total No. of shares held	% of Shareholding
1.	Sujana Holdings Limited	1,25,000	92.59
2.	Srinivas Babji Meka	5,000	3.70
3.	M. Ravinder Reddy	5,000	3.70
	Total	**1,35,000**	**100.00%**

Sl. No.	Name of the Cumulative Redeemable Preference Shareholder	Total No. of shares held	% of Shareholding

1.	Sujana Projects Limited	1,65,345	100.00
Total		**1,65,345**	**100.00**

Transferor 2 Company

Sl. No.	**Name of Equity Shareholder**	**Total No. of shares held**	**% of Shareholding**
1.	Ramakrishna Gadde	10	0.10
2.	Jagarlamudi Anjaneyulu	10	0.10
3.		1,600	15.97
4.	Info Tech Infin and Trading Private Limited	1,730	17.27
5.		1,730	17.27
6.	Swain Finance and Trading Private Limited	4,940	49.30
	Total	**10,020**	**100.00**

Transferor 3 Company

Sl. No.	**Name of shareholder**	**Total No. of shares held**	**% of Shareholding**
1.	Dikon Infratech Private Limited	2,11,52,600	97.74
2.	National Energy Trading and Services Limited	4,89,822	2.26
3.	Vella Murali Krishna	100	-
	Total	**2,16,42,522**	100.00

Transferor 4 Company

Sl. No.	**Name of shareholder**	**Total No. of shares held**	**% of Shareholding**
1.	Dikon Infratech Private Limited	2,95,00,700	97.75

2.	National Energy Trading and Services Limited	6,78,635	2.25
3.	Vella Murali Krishna	100	-
	Total	**3,01,79,435**	100.00

Transferor 5 Company

Sl. No.	**Name of shareholder**	**Total No. of shares held**	**% of Shareholding**
1.	National Energy Trading and Services Limited	2,03,600	96.48
2.	Arun Kumar Sangaraju*	3,500	1.66
3.	Dileep Nuthalapati*	3,500	1.66
4.	Bathala Suresh*	100	0.05
5.	Bhavya Chamarthi*	100	0.05
6.	Murali Krishna Vella*	100	0.05
7.	Kalyana Chakravarthy Suryadevara*	100	0.05
	Total	**2,11,000**	**100.00**

***** Equity shares held on behalf of National Energy Trading and Services Limited

(A Certificate issued by the Practicing Chartered Accountant, certifying the list of Equity shareholders and the no. of shares held by them in the Transferor Companies is annexed hereto and marked as ("Annexure-28, 29, 30, 31 & 32").

d. It is submitted that the Transferee Company has the following 7 (Seven) equity shareholders as on 31st March, 2022:

Sl. No.	Name of shareholder	Total No. of shares held	% of Shareholding
1.	Dikon Infratech Private Limited	365,28,950	99.999
2.	Kosuri Kiran Kumar	75	0.0002
3.	P. Lalmohanreddy	75	0.0002
4.	Umamahesh Balneedi	75	0.0002
5.	Balineni Poornachandra Reddy	75	0.0002
6.	Venu Bandi	75	0.0002
7.	Marella Suman	75	0.0002
	Total	**365,29,400**	**100.00**

* Equity shares held on behalf of Dikon Infratech Private Limited

(A Certificate issued by the Practicing Chartered Accountant, certifying the list of Equity shareholders and the no. of shares held by them in the Transferee Company is annexed hereto and marked as "Annexure- 33").

e. CREDITORS OF THE APPLICANT COMPANIES

It is respectfully further submitted that:

a) The Transferor Companies has the following Unsecured Creditors as on 31st December, 2022.

Transferor 1 Company

S. No	Name of Creditor	Amount (Rs)
1.	Lanco Infratech Limited	80,83,73,784
2.	Tasra Mining & Energy Company Pvt Ltd	34,41,128

3.	Asian Institute for Sustainable Development	4,55,058
4.	Balaji Rail Road Systems Pvt Ltd	1,21,434
5.	Birla Institute of Technology & Science Company	3,01,210
6.	BSSN.Raju	3,15,635
7.	Dell India Pvt Ltd	1,96,005
8.	Dikon Infratech Private Limited	8,50,000
9.	Jagriti Sharma	11,982
10.	Kuoni Business Travel India Pvt Ltd	4,20,259
11	Lahmeyer International (India)Pvt Ltd	1,51,686
12.	Lanco Amarkantak Power Ltd	1,35,103
13.	Naveen Kumar -AM (secretarial)	950
14.	Pranab Thakur - BD	2,43,355
15.	S G S India Pvt Ltd	15,169
16.	Shreeram Gemicon Pvt Ltd	3,14,612
17.	Vimta Labs Limited	6,51,749
18.	Vision Mining Consultants	7,25,058
19.	VSPN & Co	1,06,200
20.	BKK & Associates	17,700
21.	Lex Merita Law Firm (Rohit Sharma, Advocate)	1,10,000
22.	NSDL	2,65,500
23.	National Energy Trading And Services Ltd	5,00,000
24.	Provision For Expenses	8,650
	Total	**81,77,32,227**

Transferor 2 Company

S. No	Name of Creditor	Amount (Rs)
1.	Ennell Infratech Private Limited	2,50,00,000
2.	Shyamaraju And Company (India) Pvt Ltd	11,00,00,000

3.	United Mega Movers	70,00,000
4.	Lavanya Construction Pvt Ltd	26,550
5.	Siri Marketing	25,901
6.	Sri Enterprises Pvt Ltd	33,040
7.	Sri Lakshmi Auto Agencies	25,600
8.	Unimax Scaffolding	31,797
9.	KNY Projects Pvt Ltd	11,05,242
10.	Lanco Hoskote Highway Ltd	27,962
	Tota l	**14,32,76,092**

Transferor 3 Company

S. No	Name of Creditor	Amount (Rs)
1.	P Gopala Krishna	61,950
2.	BKK & Associates	94,400
3.	VSPN & Co	28,750
4.	Aarthi Consultants Pvt Ltd	11,800
5.	Srinivasa Sri Krishna Chintalapati	3,750
6.	Liza Arora	1,830
7.	Alankit Assignments Ltd	1,687
8.	Naveen Kumar	606
9.	Dikon Infratech Private Limited	45,000
10.	NSDL	3,39,250
	Tota l	**5,89,023**

Transferor 4 Company

S. No	Name of Creditor	Amount (Rs)
1.	VSPN & CO	28,750
2.	BKK & Associates	94,400
3.	KBG & Associates	3,245
4.	Aarthi Consultants Pvt Ltd	11,800

5.	Jagriti Sharma	5,262
6.	Srinivasa Sri Krishna Chintalapati	2,250
7.	Naveen Kumar	606
8.	Dikon Infratech Private Limited	45,000
9.	NSDL	3,46,625
	Total	**5,37,938**

Transferor 5 Company

S. No	**Name of Creditor**	**Amount (Rs)**
1.	P.Murali & Co	1,71,100
2.	Naveen Kumar	1,830
3.	Srinivasa Sri Krishna Chintalapati	2,250
4.	Arun Kumar Sangaraju	100
5.	Stale cheques	9,000
	Total	**1,84,280**

(A certificate issued by the statutory auditors, certifying the list of Unsecured Creditors and showing the respective amounts due to them by the Transferor Companies and also certifying that there are no secured creditors - is annexed hereto and marked as ("Annexure-34, 35, 36, 37 & 38").

f. The Transferee Company has the following Unsecured Creditors as on 31st December, 2022.

S. No	**Name of the Creditor**	**Amount (Rs)**
1	Lanco Kondapalli Power Pvt Ltd	19,51,81,935
2	Dynamic Engineers Ltd	7,44,832
3	Powermech Project Limited	58,81,35,534
4	Shree Shailja Iron and Steels Pvt Ltd	28,092
5	Tanjore Power Limited	1,76,186
6	Provision for Expenses	24,65,497
	Total	**78,67,32,076**

(A certificate issued by the statutory auditors, certifying that the list of Unsecured Creditors and showing the respective amounts due to them by the Transferee Company and also certifying that there are no secured creditors - is annexed hereto and marked as ("Annexure-39").

10. RELIEFS SOUGHT

i) In view of the facts mentioned above, the Applicant Companies hereby most respectfully and humbly prays this Hon'ble National Company Law Tribunal, forthe following directions:

a. Fix the time and place of the shareholder meetings and creditor meetings;

b. Appointment of the Chairman and Scrutinizer for the shareholder meetingsand creditor meetings;

c. Fix the quorum and the procedure to be followed at the shareholder meetingsand creditor meetings;

d. Determine value of the creditors or the members or the creditors or membersof any class as the case may be, whose meetings have to be held;

e. Notice to be given of the meeting or meetings and the advertisement of such notice of meeting in the newspapers i.e one English newspaper and one vernacular newspaper ;

f. Notice to be given to regulators required under s 230(5) to sectoral authoritiesas

g. Time within which the Chairman of the meetings will give his report to NCLT.

11. We have heard the Learned Counsel and we have seen the consent Affidavits filed by the equity shareholders of the Applicant Companies. We

have also seen the certificates given by the Chartered Accountant and Company Secretaries certifying the list of equity shareholders, Secured and unsecured creditors of the Applicant Companies and perused the documents.

12. We order convening meetings of shareholders and Unsecured Creditors of the Applicant Companies, i.e. Transferor Companies 1and Transferee Company as prayed for.

13. Meetings of Transferor Companies/Applicant 1 to 5:

i. We appoint **Mr. Sarat Chandra, Advocate,** having Email: saratchandra0709@gmail.com, Mobile Number: 7904917102 as Chairperson and **Mr. Bokaro Lokeshwar Reddy, Advocate** having email: lokeshwarreddy@gmail.com, Mobile Number: 9010666649 as Scrutinizer for convening the meetings of the shareholders and Unsecured Creditors of the Transferor Company-1. Fee fixed for Chairperson is Rs.1,50,000/- and Rs.1,00,000/- for Scrutinizer respectively for the above meetings.

ii. Meetings of shareholders, and Unsecured Creditors of the Transferor Company-1 will be held on 21st July, 2023, **at 2.00 PM : Transferor Company – 1, at 2.30 PM : Transferor Company – 2, at 3.00 PM: Transferor Company – 3, at 3.30 PM: Transferor Company – 4, and at 4.00 PM : Transferor Company – 5** at the Office of the Transferee Company situated at 1st Floor, Summit Building, Plot No. 25, Jubilee Enclave, Madhapur, Hyderabad.

iii. The Shareholders and Unsecured Creditors, be permitted to exercise their vote at the meeting either in person or through proxies.

14. Meetings of Transferee Company/Applicant 6:

i) We appoint **Mr. Amir Bavani, Advocate,** having email : amir.bavani@ablegal.in, mobile number: 9949216962 as Chairperson and **, Mr. Prasoon Das, Advocate,** having email: prasoondas11@gmail.com, Mobile No. : 8680007993 as

Scrutinizer for convening the meetings of the shareholders and Unsecured Creditors of the Transferee Company. Fee fixed for Chairperson is Rs.1,50,000/- and Rs.1,00,000/- for Scrutinizer respectively for the above meetings.

ii) Meetings of shareholders and Unsecured Creditors of the Transferee Company will be held on 21st July, 2023, **at 4.30 PM at** the Office of the Transferee Company situated at 1st Floor, Summit Building, Plot No. 25, Jubilee Enclave, Madhapur, Hyderabad.

iii) The shareholders and Unsecured Creditors, be permitted to exercise their vote at the meeting either in person or through proxies.

15. The notice of Meetings of the shareholders and Secured and Unsecured Creditors of Applicant Companies shall be published in "Business Standard" (English Daily) and in "Nava Telangana" (Telugu Daily) newspapers.

16. The Applicant Companies or its authorized Signatories are directed to issue notices to secured and unsecured creditors by ordinary post; or Air Mail or email or hand delivery to their last known address 30 clear days before the said meetings as per Form No. CAA2 (Rule 6) of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 ensuring convening the said meetings of the Applicant Companies. Further directed to intimate day, date and time, a copy of Explanatory Statement, pursuant to be sent under Section 230 of the Companies Act, 2013 and Proxy as per Form No. MGT-11 (Rule 19) of the Companies (Management and Administration) Rules, 2014.

17. The Transferee Company to serve notices upon the Regional Director, South-East Region, Ministry of Corporate Affairs, Hyderabad pursuant to Section 230 (5) of the Companies Act, 2013 as per Rule 8 of the Companies (Compromises, Arrangements and Amalgamation) Rules, 2016 if no response is received by the Tribunal from the Regional Director within 30 days of the

date of receipt of the notice, it will be presumed that Regional Director and/or Central Government has no objection to the proposed Scheme as per Rule 8 of the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016.

18. The Transferee Company to serve the notice upon the Registrar of Companies Hyderabad pursuant to Section 230 (5) of the Companies Act, 2013 as per Rule 8 of the Companies (Compromises Arrangement and Amalgamations) Rules, 2016 and if no response is received by the Tribunal from the Registrar of Companies, Hyderabad within 30 days of the date of receipt of the notice, it will be presumed that Registrar of Companies, Hyderabad has no objection to the proposed Scheme as per Rule 8 of the Companies (Compromise Arrangements and Amalgamations) Rules, 2016.

19. The Transferee Company to serve notice upon the Income Tax Authority, within whose jurisdiction the Applicant Company's Assessment is made, pursuant to Section 230 (5) of the Companies Act, 2013 as per Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016. If no response is received by the Tribunal from the Income Tax Authority within 30 days of the date of receipt of the notice, it will be presumed that Income Tax Authority has no objection to the proposed Scheme as per Rule 8 of the Companies (Compromise, Arrangement and Amalgamation) Rules, 2016.

20. The Transferee Company to serve notice upon the Official Liquidator pursuant to Section 230 (5) of the Companies Act, 2013 as per Rule 8 of the Companies (Compromises Arrangements and Amalgamations) Rules, 2016. If no response is received by the Tribunal from the Official Liquidator within 30 days of the date of receipt of the notice it will be presumed that Official Liquidator has no objection to the proposed Scheme as per Rule 8 of the Companies (Compromise, Arrangement and Amalgamation) Rules, 2016.

21. The Chairpersons shall have all powers under the Companies (Compromises, Arrangement and Amalgamation) Rules, 2016 in relation to the conduct of the meetings (s) including, deciding the procedural questions that may arise before or at any adjournment thereof or any other matter including an amendment to the Scheme or resolution, if any, proposed at the meeting by any person (s).

22. The voting shall be in person or by proxy or authorized representative, provided that the proxy, in the Form No. MGT-11, is duly authorized by the person entitled to attend and vote at the meeting. The form is to be filed with the Transferee Company at its Registered Office, not later than, forty eight hours before the aforesaid meeting in accordance with Rule 10 of the Companies (Compromise, Arrangement and Amalgamation) Rules, 2016.

23. The Chairpersons to file affidavit within 7 days from the date of the said meetings to this Tribunal that the direction regarding convening and issuance of notice (s) to all the necessary parties have been duly complied with in conformity with the relevant provisions of the Companies Act, 2013 r/w Companies (Compromise, Arrangement and Amalgamation) Rules, 2016. The Chairpersons shall report the conclusion of the aforesaid meetings as per Rule 14 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

Sd/-
Charan Singh
(Member, Technical)

Sd/-
Justice Telaprolu Rajani.
(Member, Judicial)

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